

Court No. - 21

Case :- WRIT - C No. - 1472 of 2019

Petitioner :- Pati Ram Verma

Respondent :- U.P. Power Corporation Ltd. And 2 Others

Counsel for Petitioner :- Dur Vijay Singh, Maohammd Nadeem

Counsel for Respondent :- Pankaj Srivastava, Baleshwar Chaturvedi

Hon'ble Pradeep Kumar Singh Baghel, J.

Hon'ble Pankaj Bhatia, J.

The petitioner has filed the present petition alleging that the petitioner is having a valid electricity connection being Connection No.2110/08716, on 12.5.2016 a case for theft of electricity was lodged against the petitioner under Section 135 of the Electricity Act, P.S. Tirwa District Kannauj and assessment on the basis of theft was made, the petitioner has deposited Rs.6.00 lac in terms of the said assessment. He further states that Case Crime No.222 of 2016 filed against the petitioner under Section 135 of the Electricity Act, has been decided in favour of the petitioner by the trial Court by means of order dated 11.5.2018 wherein the petitioner has been acquitted. He further states that after the acquittal the respondents are bound to take a decision withdrawing the assessment made against the petitioner and are liable to adjust the amount of Rs. 6.00 lac which has been deposited by the petitioner during pendency of the criminal case.

The petitioner has relied upon Section 8.2 (X) (h) of the Electricity Supply Code, 2005 which is reproduced herein below :-

"(X) Cognizance of the offence -

(a) A complaint in writing relating to the commission of such offence shall be lodged against the consumer or person by the Appropriate

Government or the Appropriate Commission or any of their authorized officers in this regard or a Chief Electrical Inspector or an Electrical Inspector or an authorized officer of Licensee or a Generating Company, as the case may be, within 24 hours of disconnection, in the Police Station of that area having jurisdiction.

(b) The police shall investigate the matter in accordance with the general law applicable to the investigation of any offence. For the purposes of investigation of the offence under the Act or this Code, the police shall have all the powers as available under the Code or Criminal Procedure, 1973.

(c) The police shall, after investigation, forward the report along with the FIR lodged under sub-clause (a) above to the Court for trial under the Act, i.e. a Special Court, or in absence of a Special Court, any other Court.

Provided that the Court may also take cognizance of an offence punishable under this Act upon a report of a police officer filed under Section 173 of the Code of Criminal Procedure, 1973.

(d) Notwithstanding anything contained in sub-clauses (a), (b) and (c) above, the complaint for taking cognizance of an offence punishable under the Act may be filed by the Appropriate Government or the Appropriate Commission or any of their officer authorized by them or a Chief Electrical Inspector or an Electrical Inspector or an authorized officer of Licensee or a Generating Company, as the case may be directly in the appropriate Court.

(e) Notwithstanding anything contained in the Code of Criminal Procedure 1973, every Special Court, or in absence of a Special Court, any other Court, shall take cognizance of an offence referred to in Section 135 to 140 and Section 150 of the Act without the accused being committed to it for trial, and such offence shall be cognizable and non-bailable.

(f) The cognizance of the offence under the Act shall not in any way prejudice the actions under the provision of the Indian Penal Code.

(g) The final assessment done by the licensee assessing officer in case of theft, is also subject to adjudication by the Court.

(h) In case of the decision of the Court that theft is not established, the charges levelled and assessment made by the licensee against the consumer or person shall be withdrawn in writing and the connection shall be restored through the original meter."

The counsel for the respondents Sri Baleshwar Chaturvedi has informed this Court that an appeal has been filed against the judgment and order dated 11.5.2018 vide Application u/s 378 No.122 of 2018.

The petitioner has argued that irrespective of the pendency of the appeal wherein no stay has been granted, the

respondents are bound to take action in pursuance of Section 8.2 (X)(h) of the Electricity Supply Code, 2005 and in this regard the petitioner has moved an application on 24.9.2018.

This Court is of the view that the respondents are bound to take a decision on the application filed by the petitioner in accordance with law.

Accordingly, we direct the petitioner to file a comprehensive representation before the respondent no.3 within two weeks from today and respondent no.3 shall take an appropriate decision thereupon within a period of three months of production of the certified copy of this order, in accordance with law.

The petition is disposed off.

Order Date :- 18.1.2019
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